



POLICE DEPARTMENT CITY OF NEW YORK

April 3, 2019

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In the Matter of the Charges and Specifications :

Case No.

- against - :

2018-18874

Police Officer Delores Mitchell :

Tax Registry No. 927657 :

77 Precinct :

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At:

Police Headquarters
One Police Plaza
New York, NY 10038

Before:

Honorable Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Samuel Yee, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent:

Michael Martinez, Esq.
Worth, Longworth & London
111 John Street
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Delores Mitchell, while assigned to the Highway Unit No. 2, on or about and between April 1, 2017 and March 14, 2018, while on-duty, failed to conduct Horizontal Gaze Nystagmus tests during over one hundred (100) Intoxicated Driver Testing Unit examinations.

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Intoxicated or Impaired Driver Arrest

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 27, 2019. Respondent, through her counsel, entered a plea of Not Guilty to the subject charge. The Department called Lieutenant Christopher Tocco and Sergeant Donald Schneider. Respondent called Police Officer Brian Fesinstine and testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent Guilty and recommend a penalty of the loss of 30 vacation days.

ANALYSIS

In this case, it is undisputed that Respondent worked as a highway patrol officer for 14 and a half years, working approximately 11 of those years in Brooklyn and 3 years in the Bronx and Manhattan. She received six months of initial specialized training for her position in highway patrol, which included DWI training. As part of her duties and responsibilities as a highway patrol officer, she was required to conduct tests at the Intoxicated Driving Testing Units. In August, 2014, Respondent received three days of training on DWI Detection and Standardized Field Sobriety Testing. The training included instruction and hands-on training in administering the Horizontal Gaze Nystagmus ("HGN") test. Respondent was certified to

administer the field sobriety tests, including the HGN test, on August 28, 2014. On March 9, 2017, Respondent attended a training course and learned that the HGN test was going to become a required test done as part of the IDTU testing. Some portion of the March training covered the HGN test. As of April 1, 2017, under Patrol Guide Section 208-40, Paragraph 24, the IDTU technician was required to administer the HGN, which was to be documented on Page 1 of the Highway District Intoxicated Driver Examination form. Between April 1, 2017 and March 14, 2018, Respondent conducted over 100 tests at the IDTU. She never performed the HGN test during those tests.

At trial the department presented two witnesses. Lieutenant Christopher Tocco is the Integrity Control Officer for Highway 2, which is where Respondent was assigned during the time period referred to in the charge. In April, 2018, he received a request to look at a sample of Respondent's IDTU paperwork as there had been a problem with the examination of a motorist in the 78 precinct. Lieutenant Tocco testified that he examined over 100 cases handled by Respondent. In those approximately 100 cases, the HGN test had not been completed. The paperwork from Respondent's 100 cases from April 1, 2017, until March 14, 2018, were admitted into evidence and counsel for Respondent stated the defense was conceding that in the 100 cases Respondent did not perform the HGN test. (Tr. 13-16, Dep't. Ex. 1) Lieutenant Tocco, as part of his investigation, also conducted a random sampling of the paperwork of other officers required to administer the HGN test. He looked at approximately 200 cases out of an estimated 1600 cases done during the same time period as the charge in this case, and found that in every case the officer had offered the HGN test and had noted any reasons where it had not been conducted due to language barriers or refusals. (Tr. 16-19, 33, Dep't. Ex. 2)

Lieutenant Tocco further testified that during the time period from 2014 onward, Respondent never told him that she felt she was not sufficiently trained to administer the HGN.

(Tr. 19) If she had told him this he would have referred her to confer with Sergeant Schneider, the director of IDTU, or any Drug Recognition Expert who was available to review the test with her until she felt comfortable with it. He had done this with another officer who requested some assistance. (Tr. 19-20)

On cross-examination, Lieutenant Tocco testified that during his investigation of Respondent's year of IDTU examinations it did not come to his attention that any supervisor had ever pointed out to Respondent that she wasn't doing the HGN test as required. (Tr. 23) He doesn't think there is anything on the IDTU test form that a supervisor has to sign off on. (Tr. 36) He also testified that properly filling out paperwork is very important for all officers. (Tr. 24-27)

The department also called Sergeant Donald Schneider as a witness. After serving as a highway patrol officer for several years he is currently the personnel officer and DWI coordinator for the Highway District. (Tr. 39) He has been responsible for insuring that all highway officers performing DWI tests had state certification. Sergeant Schneider became approved by the state as an instructor in standardized field sobriety testing in January 2014, and he then began to run the classes for highway patrol, SRG and CTTF officers. In order to receive state certification, an officer must attend classes and take both written and proficiency tests in the three standardized field sobriety tests of the HGN, the walk and turn, and the one leg stand test. (Tr. 40-43) The training which Respondent attended lasted three days and included hands-on learning wherein the trainees had to administer the tests, including the HGN test, to volunteers who were drinking at controlled rates. (Tr. 61, 95)

Sergeant Schneider knows Respondent as they both worked in Highway 2 for approximately the same three months. She also attended the full standardized field sobriety testing course he ran in August 2014. Respondent completed the course and was certified in DWI

detection on August 28, 2014, by New York State. (Tr. 43-46, Dep't. Ex. 3) The certification does not expire. While she attended the class, Respondent was given a participant's guide for DWI detection and standardized sobriety testing that is produced by the Division of Criminal Justice Services. (Tr. 47, 49, Dep't. Ex. 4) The HGN test is covered several times in the guide and there are instructions on the mechanics of performing the HGN test in the guide. (Tr. 48, Dep't. Ex. 4)

Sergeant Schneider was present at a training held on March 9, 2017. The training reviewed the paperwork and procedures to be followed for IDTU jobs. Specifically discussed was the upcoming change to Patrol Guide section 208-40 which, as of April 1, 2017, made the HGN test mandatory for DWI detection certified officers conducting IDTU jobs. (Tr. 48-49)¹ (Copies of power point slides indicate the material which was covered in more detail. See Dep't. Exs. 6 and 7, Tr. 53) Sergeant Schneider estimated that about 20 minutes of the day was specifically spent on the HGN test. (Tr. 68) A video showing the mechanics of the HGN test was shown and the instructor demonstrated doing the test on a volunteer. (Tr. 69) Sergeant Schneider gave the portion of the training devoted to the paperwork to be required under the April 1, 2017, revision to the Patrol Guide. The attendees were also given three email addresses, including Sergeant Schneider's email, as contact references. (Tr. 56) Respondent completed this one day training. (Tr. 52, Dep't. Ex. 5)

Sergeant Schneider left the training session about two hours before it was over. He does not remember any sheet being passed around for people to sign if they felt they needed more training in the HGN. No such list ever came to his attention. (Tr. 72-73) He does remember that

¹ Sergeant Schneider testified that the HGN was a mandatory test as of September 1, 2015, on collision investigation jobs where someone was fatally injured. In October, 2016, it became mandatory on all jobs if the officer responded to the hospital. (Tr. 65) An officer assigned to highway who was trained in the standard field sobriety tests could be called upon at any time to perform the HGN in these situations. (Tr. 70)

Respondent stated at her GO-15 that such a sheet was in fact passed around at the training. (Tr. 73)

On redirect examination, Sergeant Schneider testified that if it had come to his attention that Respondent requested retraining she would have accompanied an instructor who would take her through the test procedure again. (Tr. 75)

Respondent testified that of her 18 and a half years with the NYPD, she worked in highway patrol for 14 and a half years. (Tr. 77-78) She has acted as the ITDU officer approximately 800-900 times and including her own arrests she has done approximately 1300 to 1400 IDTUs (Tr. 80, 101) She was officially interviewed by the department on April 5, 2018, regarding failing to perform HGN tests. On April 18, she received additional training for the HGN test. She was transferred out of Highway on June 1, 2018. (Tr. 81)

Respondent testified that she was first trained and certified in the HGN test in August of 2014, but that there was no requirement that the test had to be performed at that time. (Tr. 82-84) After she was certified she did conduct approximately 50 roadside HGN tests but testified that the roadside HGN test is just one test which requires looking at someone's eyes to see if they track movement and there is no form to fill out as there is with the IDTU HGN test. (Tr. 85, 100) Respondent further testified that she knew that the IDTU form that is filled out can be used in courts. (Tr. 86)

Respondent remembers learning in March, 2017, that the Patrol Guide section was changing to make the HGN test a mandatory part of IDTU testing. Respondent estimated that only five minutes of the March training day was devoted to the HGN test. Respondent testified that during the March training, one of the trainers, police Officer Fesinstine, who she had worked with in Brooklyn, told everyone who needs to be retrained to sign a sheet that was being passed

around. Respondent put her name on the sheet because it had been three years since she last used the HGN test and she didn't feel qualified to conduct the test properly. (Tr. 87-89)

Between April 1, 2017, and March 14, 2018, Respondent did have occasion to be called on to do IDTU tests but did not conduct any HGN tests at the IDTU. (Tr. 89, 97) Respondent testified that the reason she did not perform the HGN test was because, "I was waiting to be retrained because it had been three years and I had done over 100 of those jobs and it was never brought to my attention it was a problem..." She further testified she didn't attempt to perform the test because, "I could do the basics but I have to know the definitions of what I'm doing when I'm on the stand. When I get cross-examined as to what each component or the clues to HGN are, I couldn't answer that. I was not confident enough to answer those questions." She didn't want to "perjure" herself on paperwork saying she knew what she was doing. (Tr. 90, 93) Respondent testified she was never offered retraining until after her GO-15 when she was given a refresher course in the HGN test. She felt she was able to do the HGN test, "a little bit," after that. (Tr. 91)

On cross-examination, Respondent recalled receiving training materials on the HGN test during the 2014 certification course. Although not sure, she thinks the material was what is in evidence as Department 4. (Tr. 96) Respondent also acknowledged that she knew Sergeant Schneider was the training sergeant for DWIs and yet at no time did she ever contact him to ask for a refresher training. She also never followed up with Officer Fesinstine after she signed the sheet at the March, 2017, training nor did she ever contact the other March, 2017, training officer, Officer Kessler, about needing refresher training in the HGN test. After signing the sheet in March, 2017, Respondent never did anything to follow up on asking for a refresher in the HGN test. (Tr. 101-103) Respondent never asked for a refresher course after conducting 100 IDTUs without performing the HGN test after it was required on April 1, 2017. (Tr. 104)

After her March, 2017, training class, Respondent never went back to look for the training materials she had been given on how to conduct the tests. (Tr. 105-106)

Police Officer Fesinstine also testified in this case. He testified that he participated in the training that was given prior to the change being made in the Patrol Guide to make the HGN test mandatory in the IDTU. (Tr. 109-110) Some officers at the training indicated they would like a refresher on some of the DWI tests. A sheet was passed around to ask who wanted a refresher. He does not know what was done with the sheet. He further testified that anyone who was seeking additional instruction in the field sobriety tests was told to rely on the trained drug recognition experts in their commands. Highway 2 had a few of these experts. (Tr. 113) Respondent never contacted him for additional training in the HGN test. (Tr. 114) Officer Fesinstine does not know if Respondent signed the sheet that was passed around at the training session. If Respondent had contacted him, Officer Fesinstine would have gone to Highway 2 to assist her. (Tr. 115)

Respondent is charged with failing to perform the HGN test as required under the Patrol Guide during over 100 IDTU exams she conducted between the dates of April 1, 2017, and March 14, 2018. Respondent through her own testimony has admitted to these facts. Her position, however, is that her actions do not constitute misconduct in that she did not conduct the HGN test because she did not have the expertise needed to conduct the test. She did not want to certify on official paperwork any results for a test she was not confident of administering properly.

Respondent also argues that she requested retraining on the test but the Department failed to give it to her and further that no supervisor ever told her the paperwork she filled out without the HGN test results was improper.

While the Department certainly would not want an officer to certify test results in a situation where they did not know how to administer the test, the court finds that Respondent failed to properly rectify any insecurities she may have had about performing the test. She certainly should not have let the situation go one for over 100 instances wherein she was required to perform the test in the ITDU and simply just failed to do it. The court also notes that Respondent while required under the Patrol Guide to perform the HGN test in IDTU situations starting April 1, 2017, there were other situations such as accidents involving fatalities where she could have been called on to perform the test before this date. So even before the April 1, 2017, date, as soon as Respondent felt she was not competent to perform the test she should have taken steps to correct the situation in case she was called on to perform her required duties.

Respondent had access to ample resources to assist her in learning how to properly performing the test if at any point she felt she did in fact need a refresher. First of all there was a manual given to her when she was certified to perform the HGN test. That manual which is in evidence as Department Exhibit 4 has extremely detailed descriptions on the procedures to be followed to perform the test. Secondly, Respondent also knew Sergeant Schneider was the DWI training officer. She had at one point been assigned to the same Highway command as him, she had received her 2014 certification training from him, and he participated in the one day training she attended in 2017. She also had worked with Officer Fesinstine. This is not a case where Respondent would not have known who to turn to for guidance on the HGN test. In addition, Sergeant Schneider and Officers Fesinstine and Kessler all provided their email addresses at the March, 2017, training.

I reject the defense argument that even though Respondent failed to do the required test over 100 times, no supervisor or ADA ever noted this failure or addressed it with her. The issue in this case is about what Respondent did or did not do. She knew the HGN test was required to

be performed in the IDTU after April 1, 2017, and she failed to do it. Whether there was any supervisory failure or not, does not relieve her of performing the duties she knew were required of her.

The court also finds that even if Respondent signed a sheet seeking a refresher in the HGN in March, 2017, she was not entitled to sit back and wait for over almost a year without pursuing her need for additional assistance if in fact she required it. She had an obligation to take steps which were readily available to her to rectify the situation. Respondent failed to perform her duty in over 100 instances and I find her guilty of Specification 1.

PENALTY

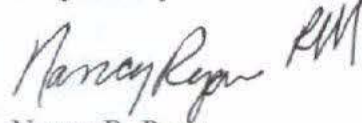
In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on October 10, 2000. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The department has requested that a penalty of the loss of 25 vacation days be imposed. There are no recent cases exactly on point with the facts in this case. In cases regarding failure to perform duties cited by the department Respondents forfeited between 20 and 40 days for - failing to accurately document activities (25 vacation days- 13 year police officer – Disciplinary Case No. 2013-8999); failing to conduct investigations into approximately 49 traffic court hearings (40 vacation days– 10 year sergeant – Disciplinary Case No. 2015-13523); submitting false and inaccurate entries into the court system regarding missed traffic bureau appearances (30 vacation days each – 18 year sergeant and 18 year lieutenant – Disciplinary Case Nos. 2016-15287 and 15288).

I have also taken into consideration that Respondent has a disciplinary case from 2016 in which she forfeited 10 vacation days for not following appropriate procedures for safeguarding a firearm. That case, while obviously different factually from the current case, can also be seen as a situation in which Respondent did not perform duties required of her.

In this case, Respondent by failing to do her duty potentially compromised over 100 DWI cases. She failed to perform one of her essential duties as a highway officer for the period of almost a year. Based on this and her prior disciplinary record, I recommend the penalty imposed be the loss of 30 vacation days.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPROVED



JUL 15 2019
JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER DELORES MITCHELL
TAX REGISTRY NO. 927657
DISCIPLINARY CASE NO. 2018-18874

Respondent was appointed to the Department on October 10, 2000.

On her last three annual performance evaluations, she twice received 3.5 overall ratings of "Highly Competent/Competent" for 2016 and 2017, and received a 4.0 overall rating of "Highly Competent" for 2015. [REDACTED]

In 2017, Respondent forfeited ten (10) vacation days after pleading guilty to failing to safeguard her firearm.

In connection with the instant matter, Respondent was placed on Level I Discipline Monitoring on July 13, 2018. Monitoring remains ongoing.

For your consideration.

Nancy R. Ryan ^{RM}
Nancy R. Ryan
Assistant Deputy Commissioner Trials